

The Central Advisory Committee On Equal Remuneration Rules, 1991

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The Central Advisory Committee On Equal Remuneration Rules, 1991

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The Central Advisory Committee On Equal Remuneration Rules, 1991

Rule THE-CENTRAL-ADVISORY-COMMITTEE-ON-EQUAL-REMUNERATION-RULES-1991 of 1991

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The Central Advisory Committee On Equal Remuneration Rules, 1991

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In exercise of the powers conferred by section 13 of the Equal Remuneration Act, 1976 (

25 of 1976

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Central Advisory Committee on Equal Remuneration Rules, 1991.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-(1) In these rules, unless the context otherwise requires,-

(a)

"Committee" means the Central Advisory Committee constituted by the Central Government under sub-section (1) of section 6 of the Equal Remuneration Act, 1976 (

25 of 1976

);

(b)

"Chairman" means the Chairman of the Committee.

3.

Composition of the Committee .-The Committee shall consist of not less than ten persons and not more than twenty persons excluding the Chairman, to be nominated by the Central Government, of which one-half shall be women. Nomination shall be made from amongst the representatives of the Central Government, State Governments/Union Territory Administrations, Members of Parliament "Employers" Organisations, Employees" Organisations and Non-Governmental Organisations engaged in the study and welfare activities of women labour. The composition of the Committee shall not be invalid for the reason that representative belonging to any of the aforesaid categories has not been included in the Committee.

4.

Term of office of members of the Committee .-(1) Save as otherwise expressly provided in these rules, the term of office of a non-official member of the Committee shall be two years from the date of his nomination:

Provided that such member shall, notwithstanding the expiry of the said period of two years, continue to hold office until his successor is nominated.

(2)

A non-official member of the Committee nominated to fill a casual vacancy shall hold office for the remainder period of the term of office of the member in whose place he is nominated.

(3)

The official members of the Committee shall hold office during the pleasure of the Central Government.

5.

Allowances of members .-(1) The travelling allowances of an official member shall be governed by the rules applicable to him for journey performed by him on official duties and shall be paid by the authority paying his salary.

(2)

The non-official members of the Committee shall be paid travelling allowance for attending the meeting of the Committee, at such rates as are admissible to Group "A" officers of the Central Government and daily allowances shall be calculated at the maximum rate admissible to Group "A" officers of the Central Government in their respective places.

6.

Cessation of membership .-If any member of the Committee not being an ex officio member of the Committee, fails to attend three consecutive meetings of the Committee, without obtaining the leave of the Chairman for such absence, he shall cease to be a member of the Committee:

Provided that the Chairman may, if he is satisfied that such member was prevented by sufficient cause from attending three consecutive meetings of the Committee without obtaining such leave, direct that such cessation shall not take place and on such direction being made, such member shall continue to be member of the Committee.

7.

Disqualification of membership .-(1) A person shall be disqualified on being nominated as, and for being, a member of the Committee if he-

(i)

is of unsound mind and stands so declared by a competent Court; or

(ii)

is an undischarged insolvent; or

(iii)

has been or is convicted of an offence which, in the opinion of the Central Government involves moral turpitude.

(2)

If a question arises as to whether a disqualification has been incurred under sub-rule (1), the Central Government shall decide the same.

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